

June 10 Load-Test Response and Written Conditions

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Attachment to District ECF No. 8 District ECF No. 8-2

Email: Technical Review of Change Request CK-01

From: Asterglen contract operations To: Copper Kestrel pilot operations Date: June 10, 2024
Subject: Conditions for evaluation of twenty-nine proposed terminal environments

Asterglen has reviewed Copper Kestrel's June 3 proposal sufficiently to begin a bounded load evaluation. We have not accepted the proposed change order, its commercial terms, or a production expansion. The existing Pilot License continues to cover twelve terminals.

For test preparation, Asterglen may provision restricted Identifiers corresponding to X-01 through X-29. Provisioning will permit connector validation and measured load activity only. It will not add those environments to Schedule A, and it must not be represented to terminal personnel or customers as production authorization.

Copper Kestrel must provide current endpoint mappings, identify all personnel and contractors requiring access, and confirm that Meridian Silt will follow these written restrictions. The parties will select a monitored test window after the mappings are reviewed.

Please acknowledge these conditions before sending traffic. Any request to change them must be made in writing. A final production decision requires a signed change order after the test results and pricing are reviewed.

Written Condition Set A — Environment and Access

1. Each proposed environment must use a separate restricted Identifier so activity can be attributed accurately. Credentials may not be shared across terminal codes or copied into an unlisted endpoint.
2. Copper Kestrel will identify the individual responsible for each connector. Meridian Silt personnel may receive access only for assigned configuration and test tasks under Copper Kestrel's supervision.
3. Proposed terminals must remain isolated from ordinary freight decision processes during connector validation. Sample or replayed data should be used unless Asterglen approves a controlled alternative in writing.
4. Configuration changes must be logged with time, environment code, purpose, and operator role. The log should distinguish mapping work, connectivity checks, test traffic, and any attempted operational event.
5. Asterglen may pause a test to protect service stability or investigate an unexpected event. A pause will be documented with its technical basis and does not decide whether the proposed change will be accepted.
6. Copper Kestrel will promptly report any credential exposure, unintended live connection, or terminal mapping that differs from the proposal. It will preserve relevant records and cooperate with correction.
7. No Identifier supplied under this condition set may remain active after testing unless Asterglen confirms continuing test status or the parties sign the expansion.

Written Condition Set B — Load Execution

The test will proceed in measured groups rather than across all twenty-nine proposed environments at once. The parties will establish a baseline using the twelve licensed terminals, then introduce representative proposed connectors in controlled increments. Asterglen will monitor aggregate requests, response time, error rate, queue behavior, and recovery after a test group is removed.

Copper Kestrel shall give at least one business day's notice of the intended test window. The notice will identify group membership, expected traffic volume, duration, responsible operators, and rollback contact. Meridian Silt may execute the approved script but may not materially alter volume or duration without confirmation.

No output generated during the evaluation should be used as the sole direction for ordinary freight movement at a Proposed Terminal. If a limited live-data sample is necessary, Copper Kestrel must isolate the result from operational dispatch and label the record as test activity.

At the conclusion of each group, the integrator will stop traffic, verify connector status, and transmit a short results summary. Asterglen will state whether the next group may begin. Completion of all groups demonstrates technical capacity only; it does not establish price, continuing license scope, or permission for production use.

Written Condition Set C — Records and Closeout

Copper Kestrel and Meridian Silt will maintain enough information to reconstruct the evaluation. Required records include terminal code, Identifier, configuration status, first and last test event, data source, volume range, operator role, exception description, and closeout time. A consolidated copy will be supplied to Asterglen on request.

The participants will meet after load activity to compare results with the June 3 proposal. Matters for review include capacity, support effort, security controls, operational readiness, fee structure, and whether any requested terminal should be deferred. No production transition date will be assumed before that review is complete.

If the parties do not sign a change order, Copper Kestrel will direct Meridian Silt to disable the proposed connectors and will confirm completion. Asterglen may deactivate corresponding Identifiers after allowing reasonable technical coordination. The original twelve terminal entries remain unaffected unless another provision of the Pilot License applies.

Questions about the meaning of these conditions should be raised before activity occurs. Silence during monitoring does not revise the writing. An oral operational instruction may address the mechanics of an approved test, but it does not waive the requirement of a signed change order for expanded production service.

The Pilot License's notice and cure provisions remain applicable according to their terms.

Acknowledgment and Follow-Up

From: Copper Kestrel pilot operations To: Asterglen contract operations Date: June 10, 2024
Subject: Re: Conditions for evaluation of twenty-nine proposed terminal environments

Copper Kestrel acknowledges receipt of the written condition sets. We will circulate them to Meridian Silt, provide endpoint mappings, and propose test groups. We understand that the June 3 change order remains under commercial review and that technical provisioning is not final production approval.

We request clarification during the first monitoring conference about whether limited live-data sampling may be used for accuracy comparison. Until that question is answered, the proposed environments will remain in connector-validation status. We will record each Identifier separately and will not describe the expanded group as licensed production service.

From: Asterglen contract operations To: Copper Kestrel pilot operations Date: June 10, 2024
Subject: Re: Conditions acknowledged

Acknowledgment received. A limited sample may be considered after mappings are validated, but approval must identify the sample and isolation method. The written conditions otherwise remain unchanged. Please coordinate proposed timing through the monitoring channel and include Meridian Silt's responsible operations role.

Record status on June 10: conditions issued and acknowledged; change order not signed; production expansion not approved.